HISTORY OF THE CREATION OF THE CONSTITUTION OF THE REPUBLIC OF UZBEKISTAN

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ABSTRACT:

In this article, the first Constitution of the sovereign democratic Republic of Uzbekistan was adopted on December 8, 1992, our basic law was created as a fruit and product of state independence, and today it is manifested as a manifesto of our freedom and security, the future of the constitution is great. It is based on the fact that there is no doubt that it will be a solid legal foundation for the development of Uzbekistan, the establishment of a socially oriented democratic legal state, and the formation of a just civil society.

Keywords: Republic of Uzbekistan, basic law, first Constitution, independent state, democratic legal state, just civil society, legal foundation.

In the last decade of the last century, with the honor of achieving state independence, a huge historical opportunity arose to create a completely new, democratic Constitution of the Republic of Uzbekistan. The adoption of the Constitution of our sovereign state by the eleventh session of the Supreme Council of the Republic of Uzbekistan on December 8, 1992 was a significant event in the history of the country.

The Constitution legalized the establishment of a new sovereign democratic state - the Republic of Uzbekistan - on the world political map. The desire of our people has been expressed to the whole world, including restoration of Uzbek statehood on modern educational foundations, peaceful coexistence and strengthening of peace with bracha measures, deepening of democracy, adherence to the ideas of human rights and state sovereignty, fair legal Noble intentions such as state building, civil peace and national unity were announced. The first President of the Republic of Uzbekistan, the Chairman of the Constitutional Commission, IA Karimov, stated at the eleventh session of the Oliy Kengash: "The adoption of the first Constitution in the history of our free Uzbekistan is the rebirth of our republic, our true independence is firmly established is to build a foundation. It is inevitable that our constitution, as our main law, will be the basis for the laws that make the state a state and make the nation a nation.

The Constitution of Uzbekistan, as a high-level law, strengthened the image of our state, its social, economic, political system, democratic principles of management, strategic directions of society's development, guaranteed rights and freedoms of citizens, and the foundations of our moral values. "Constitution is a new document according to its essence, philosophy and idea. There is no trace of communist ideology, classism, or partisanship in it. We put forward the opinion that the greatest among the total worldly blessings is **man , and on this basis "citizen - society -** we tried to find a reasonable legal solution of mutual relations between the "state".

The idea of creating a new Constitution of Uzbekistan is closely related to the adoption of the Declaration of Independence on June 20, 1990. The second session of the Supreme Council, which adopted this Declaration, came to the conclusion that it is necessary to develop a new state constitution based on the principles of this document. The session made a decision to create a Constitutional Commission consisting of 64 people under the chairmanship of the first president, IA Karimov[3]. It included deputies, representatives of the Republic of Karakalpakstan and regions, heads of state and public organizations, enterprises and farms, well-known legal scholars and specialists. At the tenth session of the Supreme Council held on July 2-3, 1992, the composition of the commission was partially renewed. The number of its members was 71[4].

Real changes taking place in the form of vital needs in our socio-political development, in turn, shaped political and legal thinking. When the situation was ripe for direct work on the draft constitution, the Constitutional Commission gathered for its next session on April 12, 1991 [5].

A 32-person working group consisting of members of the Constitutional Commission and leading experts and scientists was established to coordinate all organizational and creative processes related to the creation of the draft constitution. It included chairpersons of several committees of the legislative office, heads of ministries, courts, prosecutor's offices, office of the President of the Republic and officials of the Office of the Supreme Council [6]. At the meeting, 6 small groups were also formed to prepare the intended sections of the draft constitution. 50 researchers and specialists were involved in small groups. These subgroups were:

1) According to the preamble of the Constitution; 2) Department of Fundamentals of the Constitutional System of Uzbekistan; 3) department of rights, freedoms and obligations of citizens; 4) department of society and person; 5) state structure department 6) state power department and final regulations[7].

The Chairman of the Constitutional Commission assigned the following tasks to the working group: to study the world experience of constitutional development, to take into account the achievements of other countries in the field of human rights, democracy and legislation, to prepare a political and legal document that is close and understandable to the general public. such as creating In accordance with this task, the constitutions of the USA, Germany, Greece, Italy, Spain, Canada, Egypt, Portugal, Turkey, France, Iran, China, India, Pakistan, Sweden, Japan, Hungary, Bulgaria, and Lithuania were studied in depth. Also, draft constitutions of the CIS republics of the Russian Federation, Belarus, Azerbaijan, Ukraine, Kazakhstan, Kyrgyzstan and Turkmenistan were carefully studied. [8] .

In creating the draft of the Constitution of the Republic of Uzbekistan, a significant theoretical and conceptual basis was relied upon. At the beginning of 1991, by the order of the head of the Constitutional Commission, work was started on the concept of the future constitution. As a result, three alternative concepts were created: the concept of the Institute of Philosophy and Law of the Republican Academy of Sciences, the concept of the Institute of Political Science and Management, and the concept prepared by the legal department of the President[9]. At the meeting of the working group, the third concept was found to be the most alternative and was adopted as the basis. Based on this concept, which was approved by the Constitutional Commission and its chairman, the drafting of the future constitution was started.

The first version of the project was prepared by October-November 1991. It consisted of 158 articles divided into six sections. During the development of this project, a fundamental turning point occurred in the history of our country. On August 31, 1991, the Republic of Uzbekistan adopted its constitutional law on the foundations of state independence and the statement of the Supreme Council on the state independence of the Republic of Uzbekistan. With this, it was announced to the whole world that the parliament of the republic decided to be an independent **Republic of Uzbekistan - a sovereign state .** In the law, important principles such as people's power, democratic statehood, the sanctity of human rights, the rule of law, the distribution of powers, the territorial integrity and integrity of the country have been integrated into the content of the draft constitution. Nevertheless, the initial project was still far from perfect. It was necessary to work more seriously and demandingly. In the spring of 1992, a second version of 149 items was developed.

The President of the Republic - the Chairman of the Constitutional Commission carefully reviewed the text of this draft version. Each time after his glance, the project became

perfect, becoming clear, concise and expressive. The third option consisted of 137 items. The draft was once again studied by the Constitutional Commission and its chairman before it was published in the press for public discussion. Academician Sh.Z. is a member of the Constitutional Commission. Orazayev wrote the following words: "The president talked with the members of the working group on the preparation of the draft Constitution, read the draft over and over again, carefully observed its text and made corrections to it. This person's excellent analytical skills, ability to foresee the future, talent for sensitive feelings were extremely surprising to us. He was always ready for work, always searching, trying to understand the essence of the work and to make the most optimal decision on it. The chairman of the constitutional commission paid attention to every detail of the project, made corrections and clarifications with his own hand, showed an example of diligent approach to work, business and knowledge" [10]. The version of the project prepared for public discussion consisted of 127 articles.

It is known that the draft text of the Constitution of the Republic of Uzbekistan was originally drafted in Russian. After the project was completed, in July-August 1992, according to the task of the head of the Working Group, Sh.Z Orazayev, I was engaged in translating the text of the draft Constitution from Russian to Uzbek.

When the Constitution of the Republic of Uzbekistan was born, its draft was widely discussed by the whole nation. At the meeting of the Constitutional Commission held on September 5, 1992, the draft constitution was thoroughly discussed. According to the decision of this commission, the draft constitution was published in the press on September 26, 1992 for public discussion.

Every citizen of our country, the entire public, welcomed the draft constitution with great interest and boundless pride for the free Motherland. This is self-explanatory. After all, the future of our country and the fate of our people largely depended on how our constitution would be. It is known that "the constitution of any country reflects the will, mentality, social consciousness and culture of its people" [11].

After the draft of the constitution was announced, letters with opinions and suggestions began to flow to the constitutional commission. A great deal of work was done by the members of the commission to study and compare the views of people of different age and social status, beliefs and opinions, imaginations. Every word in the project was put on the scales of intelligence and thinking, every aspect was measured, compared to each other, and tried to put it in its rightful place. It is worth noting that none of the letters, suggestions and opinions received by the Commission contained negative opinions or

denials about the project, and there were no serious objections to its structure, concept and direction. On the contrary, the mood of satisfaction, satisfaction, and support took priority.

All comments and suggestions were sincere, and they expressed reasonable opinions about some of its articles and provisions, while the project was approved in general. The fact that the whole nation, all citizens actively and interestedly participated in the discussion of the project brought great satisfaction. The discussion, which lasted almost two and a half months, did not leave anyone indifferent to the project. In the letters about the draft constitution, the opinions of the leadership of the republic and the internal and foreign policy it was conducting were expressed. It is worth noting that scientists and writers, students and pensioners, workers and farmers, religious leaders and military personnel, teachers and doctors, representatives of different strata of the population, people of different ages and positions, sent their letters, thoughts, suggestions and comments. sent directly to the constitutional commission.

The national discussion of the draft constitution was extremely wide-scale and took place in a mood of high creative enthusiasm and activity. It is no exaggeration to say that the discussion was literally a reflection of the incomparable wisdom of the masses. It is a clear demonstration of the establishment of real democracy in our society. In terms of its spirit and content, the discussion turned into a general conversation of the whole nation on the most important issues of state and community life. The intense and interesting discussion of the project showed that *our nation itself was the direct creator* of the Basic Law of independent Uzbekistan.

The public discussion lasted from the end of September to the beginning of December 1992. All adults of the country participated in it. Intense discussions and debates took place in the press, on radio and television, at meetings of enterprises, institutions and organizations, and in student auditoriums. The project was discussed at the session of the Supreme Council of Karakalpakstan, at meetings of activists in regions, districts and cities. The Directorate of the Supreme Council, regional governments regularly summarized the proposals and comments, made final tables and sent them to the Constitutional Commission.

During this period, an important innovation occurred in the state-legal experience of the Republic of Uzbekistan. Its essence is that the draft was restructured by the Constitutional Commission during the two and a half month period (starting from September 26, 1992) based on the proposals of the citizens of the country, and on November 21, 1992, it was announced in the press for the second time to continue the

discussion. Thus, *a legal precedent* was set - public discussion was carried out *in two stages* . This situation became a powerful motivation that made the participants of the discussion even more active. Its purpose was to clearly show citizens the products and results of their enthusiasm in the discussion.

More than 6,000 suggestions and comments were made during the public debate on the draft constitution. Only the Constitutional Commission received more than a thousand letters. They emphasize the advantages of the project, such as conciseness, deep meaning and comprehensibility for all. Proposals and comments are related to all articles of the draft Constitution, corrections and clarifications were made to almost half of the text, that is, to 60 of the 127 articles in the draft. 4 articles were removed from the original version and several new articles were added to the text[10].

Most of the suggestions and comments are about the rights and duties of citizens; freedom and inviolability of the individual; appreciation of man and his work, role and function of religion in society; economic rights, including property rights; development of market relations and entrepreneurship; included articles, chapters and sections aimed at strengthening education and medical care, strengthening the constitutional foundations of legal order and legitimacy. [12]

Thus, the national discussion of the draft Constitution made it possible to directly determine the will of the people of Uzbekistan, as well as comprehensively and deeply study and summarize the rich material collected during the discussion, and express it in the Basic Law in the form of an embodied state will. It is no exaggeration to say that the first Constitution of the Republic of Uzbekistan is truly **a "people's law"** . During two and a half months, it was discussed by the people, enriched and polished with the masterpieces of the people's treasure of thought. The Constitution was the product of political wisdom and legal thinking of our people.

The Constitutional Commission worked very seriously and meticulously on the improvement of the project during the public debate. He paid attention to the fact that the constitutional norms are legally clear and thorough.

Based on the principle of presumption of innocence, a person is not considered guilty until proven guilty in Article 26 at the suggestion of the Chairman of the Commission, and in Article 27, "No one can reveal the secret of someone's correspondence and telephone conversations except in the cases and procedures provided for by law." entered.

Also, a great deal of attention was paid to the issue of freedom of conscience. In the draft, it is stated that "everyone has the right to freedom of conscience, everyone has the right to

believe in any religion or not to believe in any religion, have religious and atheistic beliefs. "has the right to exist and spread such beliefs," the Chairman corrected the sentence and said, "Freedom of conscience is guaranteed for everyone. Everyone has the right to believe in any religion or not to believe in any religion. Forced indoctrination of religious views is not allowed," he explained. Article 31 of our Constitution, which has been in force for thirty years, has strengthened this norm.

At the initiative of the chairman of the Constitutional Commission, the Arbitration Court was transformed into an economic court. The supreme state representative body was called the Oliy Majlis.

At the meeting of the Constitutional Commission, the question of whether the President should be a member of a particular party was the cause of wide discussion. Article 90 of the draft constitution stipulates that the President may suspend his membership in a political party during his term of office . Based on the experience of the absence of a special article on the membership of the head of state in one or another political party or the possibility of leaving it in the Western democratic practice, the Constitutional Commission, at its meeting on December 7, 1992, decided on the membership of a certain party by the President. made a decision to exclude the suspension provision from the project.

It was stated in the draft constitution that "the realization of the rights and freedoms of citizens is inseparable from the fulfillment of their obligations." These words were replaced by the following specific expressions**:** "All citizens shall fulfill their duties specified in the Constitution" (Article 47). As a result, this norm became legally clear and clear.

According to the proposal of the chairman of the constitutional commission, the project includes the inviolability of the person, the presumption of innocence, the state of motherhood and childhood. by articles on protection were introduced. At the meeting of the Constitutional Commission held on December 7, 1992, the Chairman proposed to supplement the draft constitution with articles on equal protection of men and women. One of the participants of this meeting proposed to start the section "Organization of State Power" with a chapter on "President of the Republic of Uzbekistan".

In this discussion, the results of public participation were especially focused on the commission. Citizens received at least three proposals for each word, phrase, definition and article of the draft constitution. They were carefully studied by the Constitutional Commission and the most important ones were included in the draft. This clearly shows that the first Constitution of the independent state was formed and refined in a truly

democratic environment, and that the proposals of the representatives of different sections of the population, the opinion of the public were taken into account and studied.

The proposed proposals for the "Organization of State Power" department are distinguished by their variety. In particular, the Constitutional Commission rejected the proposal to establish two chambers within the Oliy Majlis, that is, the Chamber of Representatives and the Chamber of Nations, consisting of people's deputies elected by regional districts. Further democratic development, liberalization of all spheres of social life, deepening of fundamental reforms, state and society building, improvement of management and law-making systems, and the formation of the foundations of civil society are the priority goals and tasks that require the national parliament to be permanently functioning bicameral, professional. is enough. Because of this need, in the second session of the Oliy Majlis of the second convocation , a proposal was put forward to discuss the issue of forming the parliament in the form of a bicameral legislative body in the future [13].

The eleventh session of the Supreme Council of the Republic of Uzbekistan (December 8, 1992) adopted the Constitution - Basic Law of the Republic of Uzbekistan after an active and interesting discussion. During the session, deputies will make about 80 changes, additions and clarifications to the project. In particular, the term of office of the Constitutional, Supreme and Supreme Economic Courts was reduced from ten years to five years: "Article 84 of the Supreme Council was supplemented with the following new part: "The Chairman of the Supreme Assembly and his deputies to the Oliy Majlis of the Republic of Uzbekistan they report every year." The following sentence was added to Article 78, Clause 8: "Adoption of the budget of the Republic of Uzbekistan and control over its execution, introduction of taxes and other mandatory payments" and so on.

Article 42 of the main draft law was as follows: "The state takes care of the scientific, technical and spiritual development of society, guarantees the enjoyment of the achievements of the scientific and cultural wealth of our homeland and the world." Deputies adopted this article in a new version: "Everyone is guaranteed freedom of scientific and technical creativity, the right to use cultural achievements. The state takes care of the cultural, scientific and technical development of society."

Also, in Article 55 of the draft (current Article 56 of the Constitution), as a result of the session discussion, "Veterans' organization" was added to the list of public associations.

According to the proposal of People's Deputy Halimakhan Usmonova, the sentence "Motherhood and childhood are

protected by the state" was added to article 64 (now 65) of the project.

Of course, there were those who rejected the proposals of deputies and did not join the project. For example, some deputies proposed to strengthen the provision that membership of trade unions is compulsory in Article 58 of the draft. This opinion was also not supported, because it contradicted the principle of voluntary formation of public associations. Also, it was proposed to write the rule that "provincial, city and district prosecutors are appointed in agreement with the governor of the relevant administrative-territorial unit" in part 3 of Article 118. Most of the deputies of the Supreme Council did not agree to this proposal. The reason is that in accordance with the current legislation and experience, prosecutor's offices are established and operate on the basis of the principle of sole leadership. Therefore, all levels of prosecutors are appointed by the Prosecutor General of the Republic. In addition, the prosecutor's office cannot be under the influence of local authorities. In addition, the prosecutor's office supervises the legality of the activities of governors in the relevant area.

A number of proposals and opinions of the deputies helped to improve the wording and methodological fluency of the draft Constitution.

Thus, on December 8, 1992, the first Constitution of the sovereign democratic Republic of Uzbekistan was adopted. Our basic law was created as a fruit and product of state independence, and today it is manifested as a manifesto of our freedom and security. There is no doubt that the Constitution will be a solid legal foundation for the development of the future great Uzbekistan, the establishment of a socially oriented democratic legal state, and the formation of a just civil society.

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